

Smt Bharati W/O Suryanarayana vs Dr Suryanarayana S Kattimani on 18 October, 2011

Author: Manjula Chellur

Bench: Manjula Chellur

MF A No20819/200

IN TFIF' HIGH ('OURT OP KARNAI'AKA
CIRCUIT BENCH AT DHARWAD

DATHD THIS TIIF 18 DAY OF' OCTOBE
R21 ii

PRESENT
I HE HON BLE MRSJUSTICE MANJULA CIIE
LI.UH
AND
TILE IIONJ-31 B MR. JUSTICE V. SUR1 APP
A RAO

M,FA.No.20819/2008 (MC)

BETWEEN:

Srnt Bharati,
W/o Survanaravana Kattimani
Aged about 45 years,
Ccc Private Services
R/o Vidyanaga r.
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APPELLAN 1'

[By Sn t Prafulla S. Naik, •'VI

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This MFA Is filed under SectIon 28(1) of the Hindu Marriage Act. 1955. prayIng to set asid e the Judgment and deere dated 2.6.2007 passed In MC NC . 101/2003 passed b the Principal C lvii .Judge (Sr. Dii). Ilubil, tiled u/s 13 1 (1 B) w cording to Hindu Marriage Act 195 5 and etc. This appeal coming on for hea ting this day. MANJULA ('HELLUR J . delivered the following:

JUDGMENT

The appellant herein by name Smt Bharatl is the wife of one Dr Suryanarayana Kattim ani who is the respondent in the present appeal The maniage between the parties being solemnized according to the customary ntc q at the Railway Kalyana Mantap. Hubil HI 28 12 '983 is fl dispute. birth

n) of two children a daughter and a son by name Pooja and mayak out of the said iedlock Is also w t in I sp ite. 1 s 11%) mt in dkpute tlu I is in the iate ef 'nair age .1 tht i p 11 it siihtlm'i pcickm.tlc p'liii 'as S b:ars vi'ttie rcs t oon' lit 'ldtr th .ippell ii mi 1w ' .i to I- . (-.11% TIt . " .Ci vit lk! P ' " rkuç i Gulbarga The parents of the appellant were living at Hubli. The younger sister of n %pondent husband by name Sharanamma was given in mantiige to patei xml uric Ic of appellant by name Dr Siddechwar about 8 to 10 rears earlier to the marriage between the appellant and the respondent.

2. According to the appellant, they led a happy marital life in the matrimonial house at Gulbarga for about 15 days. Thereafter, in order to have good education for the children the appellant-wife stayed in the house belonging to the respondent-husband consigned by him at Qulbirga and it was respondent husband who used to visit Gii1bara 'met at night a week or so to see his wife and himself. It is respondent's admission IJKP -I pitas Mt 11 aJ O:11w ti in Rajankeiltu .ii'd .it 5nlepeth tot about 4 Wh't' " i Tllt nil ,. innll:ttii j1-

" i p a 'u it ci '-hUt strangely and she nevti showed love and affection to hhn and he was diet ui bed with said attitude of the wife Because ol this, he tnok his wife :uid children to Suk'pet In March 1994 and stayed there till the appellant wife abandoned the company of him along with the children in March 1995

4. The respondent husband further contend that when they were living at Solepet. all of a sudden without his knowledge the appellant wife left the house along with her children. On account of this attitude of his wife. the husband became disheartened and made hectic efforts to trace the whereabouts of his family and lastly he had to lodge a complaint. It is on the basis of the complaint that the husband was directed to file a petition for divorce. (The husband's statement is not reliable as it is based on hearsay evidence.)

learned that she even joined a private firm and was earning good income for the maintenance of herself and children.

5. Since the appellant's wife did not indicate any interest to return back to her matrimonial home and intentionally deserted the company of her husband without showing any love and affection. the respondent-husband had no other go than to approach Court for dissolution of the marriage and for a decree of divorce putting an end to the marriage between him and the appellant wife.

6. As against this, contesting the divorce petition the appellant wife filed a detailed objection statement from the admitted facts and according to her other statement made in the appellant are false and hence the contention made in the appellant's statement is not reliable. (The husband's statement is not reliable as it is based on hearsay evidence.) It is further stated that the husband's statement is not reliable as it is based on hearsay evidence. (The husband's statement is not reliable as it is based on hearsay evidence.)

the sister of her husband Sharananima the relation between herself and the respondent was strained. As a matter of fact, immediately after the marriage the respondent husband is said to have informed the appellant wife that his main intention of marrying her was to torture and cause agony to her in order to take revenge for the misery suffered by his sister Sharananima at the hands of her

8. She denies all the a ermelil s in the petition that hei hu tailhad&reatir hnaio tol adahip mandlife with r A a dlnç hc r ci li and vex I erec at)OUt hc i ci ildreri md 'ptciil iii' ia', ill ii ratitna the dat ci i iegul is I)rckr tsr thc t tic ft C 'It a r when they ere residing at Sulepet and started threatening lit r to ',(nd tar son to an ordinary Kannada medium c'hnl co that he will not get proper education. Being afraid ol this attItude ot the husband, she derided to stay m Hubh along with her children so as to have the comfort and company of her parents to bring tip her children by giving proper education to them. She never had any objection for her huhand to get a transfer to Hubli or visit her aiid her children at Hubli But it was the respondent husband who wanted her to live at (Julbarga only in the Iamily house with an Intention to torture her. her parents and the children on account of I the stnlnd relationship between his slst r Sharanamma and hcr junior unde D '3iddeshv n' She decided

9. It is averred In the objection statement. that she had passed PUC when she got man-led and after leaving her matrimonial home in 1995 she Joined and completed her Post graduation Course and Diploma in computers. She started working for a prtvatc company and the meagre mc ome bhc i as earning i as msuifmc mc mit for her to mairtur hcrself end lc hildr r Sh 'a ut able t derand nihing I m lit pint a hi vet from s . Whcmi tS 1 r ted 'he ace he m parc tita i attly 411 1 mid t fin-umcmal burden . he had tq fit 'n t'urcnlnet' pLilti. ii 'it 1 tel)Oos. %(F jttj maintenance for herself and her two children. Only after nceiiiing notic In the maintenance claim petition In inktr to avoid payment of maintenance the husband thought of approaching the Court with the divorce petition after 7 years of their separation without any reason or rhyme. According to her. her husband even tiled the application o & WC' No.19/2001 seeking for custody of children only to harass and give mental torture threatening to take away both the children from her. At no point of time he showed love and affection to the children. After filing G & W.C ('ace he started visiting the Schools of her children only to show the Court and others a that hL cares for his children. Auoidnig ft her. even if hc iusbar d I ad rltten letters t hcr and o hex fatha sMug ncr i .i cuiiic back. it was only to 'ontinue the tortuir w flrr and to taict rc'e'u.€" au h' r Iathei and by-i 'urws ii Sid le n' ii. A' n bra. I er er a ' C iO) C' if t.

husband and therefore, the husband was riot entitled for an dcci cc of clivoi C c 1(1. With these pleadings 1)Oth the panics brought on record oral anti documentary evidence. They have not examined any other witnesses The learned trial Judge nit appraisal of the entire material on record, proceeded to grant a decree of divone on the ground that inspite of flu Intervention and efforts of the Court to reconcile the differences, she did not show any inclination to go back to her matrimonial home. The Ieanwd trial Judge has noted. that the wife while refusing to Join her husband at Gulbarga insisted him to stay at Hubli or nearby place. According to trial C nirt. the appellant wife also has dc ned in hcr ev c e i c regarding ha husband being I ccl to I the wr 1 t not Joi t it lici ' r UI tlle%t r ultIn j r. I iii' Ic i c trial .'ucl:e inc that tIM V MF 'tSo.2081912008 appellant wife Is adamant and stubborn and she wants her own way to be achieved by commanding her huqbanel to come and live with her wherever she chooses. The learned Thai Judge also found fault with the defendant for leaving the house of her husband and placed much reliance on the mibsing complaint accepting

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happily with his wife and children at Banizalorc. were tried to lx brought on rccoid b ilk respondent husband only to convince the ('oufl that lie 1% right anti the 1le is at wrong. According to her, the tact that during the period of 7 years. i.e. between 1995 and the date of filing of divorce petition In 2002. not even on a single occasion he visited Ihc wife and children with the Intention of resuming his relationship with them. This would Indicate that he is not at all Interested In them and only to avoid payment of maintenance and to show to the Society that he Is a good person he has approached the Court seeking dissolution of the marriage.

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She also brought to the notice of the Court that Dr Sladdtshwar th Junior uncle of appellant is no more Sharanawwa and respondent imqbn d art living at thai-ga in hc a i same hmse As the respcer lert husbaidd haq takt n inluntaty reurenwnt. lie has private i tu (i i d vc . c. e t 1 1 TI.' ondent l'uband .,bjrttiu.i t',r ii e u 9.

'4 ins)IIV p tI(atHbli u din tot i ti apyrcher. ion • the nh I 4 ha iii Ha that I '.1 to go back to her husband at Gulbarga. the respondent would again resume the torture both physical and mental with much more 1coti r is genuine and once the Court goes through the contents of the letters written by the husband to her and her father, the clear Intention of the respondent husband would be understood and therefore, according to her the judgment and decree of divorce deserves to be set aside. According to the learned Counsel, when the appellant has justifiable cause to live separately even If there Is separation between husband and wife for a period of 7 years, there cannot be a decree for divorce when the respondent-husband is at fault and iesponsibk for th separatlon between them With these arguments. slic sought for setting aside the judgment and a fth ia C iii)) owi'4,.t ecfpc I., A agaIn t us the lEe xx C nit I lot he ft on I nt in' ,i 'vid tr)k i'. t In (uQ n' t t A' tlx :1!t; i!i4' Ib, flit t-"sF)_aI lLlSbrbttd 1fjt tht ia1 (..ijjt MFA No208lg/2008 18:

justifiable cause, cannot have her say even in this matter and therefore, the order of the trial Court granting decree of divorce is sustainable. According to him the letter% at Exhibits R. 1 to P.6 are indication of the anxiety shown by the respondent husband that his wife has taken away his children

and was living separately without any justifiable cause and there was no intention of treating the appellant- wife with cruelty at any point of time He contends that the reasoning of the trial Court is Just and proper and he seeks for dismissal of the appeal.

17. With this argument at our command. we have gone through the evidence of both parties and will see the content of exhibit 'i' brought on record.

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examination, lie persistently states that since 1995 after leaving Gulbarga both his children were continuing their education at 1-Tubli tas'int with their maternal grand parents along with their mother. He admits the strained relationship between his sister Sharanaznma and her husband Dr.Siddeshvar. He categorically denies the suggestion that on account of misunderstandings between his sister and her husband in order to take revenge, his wife was ill-treated at his hands not only by him but also by his family members After 1994 they started residing at Sulepeth after his transfer to the Government Hospital and he thins all the allegations that he is throwing the food and alcohol on her face lie denies suspecting the fidelity of his wife and he also denies his threats to her hit I e would put iCd rn ier at lit alnut h i ter and mothei "siting iheni .n "ilepeth hut clerics ill t at g us sift onthe istigitin)fhnotei nc 'su 1 I-k S o It f es the gp sri i t nal hig ar'.ui4cfln ru I',r Inc ir rj. tithiti rs"a to 'ta' iii it boarding school only In order to separate her from her mother thereby causing Immense misery to his wife He also denies filing Divorce Petition after conciliation talk before the court In the maintenance petition 19 According to him, the only problem with his wife was that she wanted to stay at liubli along with her parents and she was stubborn In her stand and this is the reason for their misunderstanding. lie admits filing appeal against the order of maintenance and also the efforts of the lion Me Judges of the High Court to reconcile the differences between them However the argument was that lx. offered U Inc iinth Ins wife only to evade payment of maintenance to This infelut not with cal ntention x.hn tofulicathsc I Higi -w hetook di x 1 f ci rc.

:22 son who was at residential school In Belgaum being brought back by the wife According to the appellant/wlfr her husband was very strict with the children and he was not talking to them with love and affection and therefore the children were all the time under fear. Therefore, she was of the opinion, love and affection must be shown to the children to make them grow In normal and proper way As a matter of fact, she expresses her opinion that because of the attitude of the husband towards the son, son was becoming stubborn day by day and she even was under apprehension that her son would not correct himself and he may become a bad element In the Society The reason she

not possible for anyone to reconcile the differences between them. The letters at Ex.R. 1 to Ex RM. the first three letters are addressed to the father of the wife by the respondent/husband I' though he begins the letter with pranams to his father-In-law, the entire contents of the letter would go to show that he was finding fault with the upbringing of Bharathi by his in laws. he was finding fault with Dr.Siddeshwar. he was finding fault with his father- in law In not advising Dr.Siddeshwar and even goes to the extent of saying the sole purpose of marrying Bharathi was to see that the problems of his sister would be solved In one of the letters. he says that his father In law WUS xciv reluctant to offer his daughter to him hi marriage but Ix cause of the prcssun by the responcic nt/husband father ol I he dppt'llant agrn'd to Øvt her in nisu riage t hhn 1 for the huul of Hitarathi in ih air cil F ni I ii hetnep Br jd4 shinir ,Lnd lif', %--t r Sharananjnn. Bitt bf(1.1 itt t'c nF KI tx b s I lgharathi to 11cr parents mdicate that she was very much depressed by the state of affiurs between herself and her husband and qhe wac blaming her fate and becau'e of 'trained relationship between her uncle and her husband. her marital 11k was becoming worse day by day and the ill treatment caused to her was increasing day by day She wrote on several occasions that it was not possible with all the patience and tolerance to stay with her husband any more and if she would not leave the matrimonial home along with her children she would not like to continue her life and she may even take a strong step to commit suicide. The letter' indicate the mental torture caused to her by her husband by taking away Pooja to a boarding 'chool againt her mother's wish and hc hiM's wish 'he as also v'xprcs i .

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exercise, her husband was trying to separate her children from her to cause mental agony In her. She has also stated that her husband used to say that as long as the life of his sister with Dr Slddeshwar is not happy, life of his wife I.e.. Smt.Bharathi wili also be unhappy and he would never visit Bharathi or her parents and he also requested them not to visit him in his life time. He even declares that If they were to visit him he would not mind going to any extent and advises them not to

do anything against his wish. In none of these six letters. we find any good gesturt on the part of the respondent/husband either towards his wife or at least towards his childien He has total hatred towai ds his in -ia s. fri his evidence. h says that there is nothing seriously wrong about hi wife ev ept t 1 he fact that she ikt ided ti si a at I Iubh wif.i her parents Mu"h p1 fur to k 'vuig the matriinniiiai hoiit.

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Gulbarga. the attitude of his family members and the husband towards the wife and children did not change. 24 As the behanour of husband was bec oming more and more intolerable, she at, unable to bear the torture at his hands and finally decided to leave him According to her. she left the house in 1995 after informing the husband but according to him without informing anyone she took away her children to stay with her parents. Whether she took away her children herself or she left matrimonial home after informing him. the reason for such step is very' much clear from the contents of Ex.R. I a to Ex.R.6.

2ii 'The learned Judge though reftrs to the be etter h a ntents wn iot at all di'c .issed and understood Tht 1cm . xprc ssed tin a.ony of appellant \vifr wloie hei puenl', I. 'All • flt% t.r undt rstoud ihe tlr..p,,. 13%ed 1w thr lit'sbtu 't getiiist ni' wile anal in laws Pu-- entire 'ijf 1V'MiId lfl(I't 'It.' oi .

1 i %LP' as In aut n Cd flit I MF' No.208)0/2008 substantiate the defence taken by her in the objection statement and the contents of Ex R 1 to Ex.6 do substantiate her qtand in establishing that respondent/husband was responsible for her to take extreme step of leaving the matrimonial home. Once the husband learnt that the wife and the children were living at Hubli right from 1995 to 2002. he did not even move his little finger to see that he gets back his wife and children. If he was a devoted father and loving husband. some affection must have been shown by his action. Afler filing maintenance petition during the conciliation proceedings he decided to file not only guardian petition for custody of the children but also divorce petition This vnuld only indicatt that he did not change Ins ittitude c e after eir I separatin f om hi àmily and h ai ted o thrc dt hiq 'uft and bla kmaii Iwi b av'nR that lit wo' ild lake .iw, a 'lit childi en iron.t lie' if 'lit i "Aid vot .tttt- u' i 1 t s dauri hr maunr'niut H' 'si lit Ofll- step . tlljrt ad h 1 ' i t vflrj lXtllllflfl nlio, r at 1 fg ft.

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her children. Having married to the respondent? husband, a doctor she tried her best for about 12 years to compromise with the situation and her taft. No one in particular her husband co-operated with her in an issue. Even the nonnal things were becoming scarcity in the family. In that situation, if a woman decides to leave the matrimonial home, one camiot find fault with her. If everything was good and nice, definitely appellant/wife would not have decided to go away depriving her children the care and protection oi their father. She had to struggle every minute for finance as her parents were not that well to do Hence ultimately at tile cost of welfare of I her children and herself she left tlic matrimonial home cnnpktd her dcgrec in wder to earn money ñ r her limg rn I at r hildren m untenan 'e Then i ream inpo%ibk I tic o muntun ni i i h i nlir r ctefildasiitio flhtftflf(C. ion C) '1 p1 - I , he ipprli n /wif tic r ic in ii ml it ' tan h 1 inn' deci.inn n. h i I tla.n i cli , ME \ No20819/2008 unfortunate that the trial court did not appreciate the evidence in the right perspective and looked at tire entire matter with a tinted glass Just because she refused to live at Gulbarga. he straightaway opines that there was no justification not to join her husband, lie ought to have understood the background and the circumstances in which she left the matrimonial home, If only he had read the contents of Ex,R, 1 to Ex.6 properly, he would have appreciated the situation in which appellant/wife was placed Unfortunately, such gesture was not shown by the trial ourt 2\$ In i w of the above dis ussiori arid re isonmg v h opinion then i j istth atiori for h appJ ant wik t t' way fror F er sbann an I the The appeal hi allowed. Ordei of the trial court dated 02.06 2007 in M C.No 101/2003 Is set aside The divorce petition filed by the respondent/husband m M.C'.No 101/2003 on the file of the Pit Civil Judge. is dismissed with costs throughout.